

notified MEYER of PEREZ's aggressive conduct in a March 4, 2021 email to MEYER's Vice President of Human Resources Jennifer Bledsoe. In a subsequent email on March 9, 2021 to Chris Banning, MEYER's president, Bledsoe admitted and conveyed to Banning awareness that PEREZ's aggressive conduct was directed at his female direct reports, suggesting animus based on sex and/or gender, and that PEREZ's aggressive conduct was driven at least in part by cultural animus. Later that same week Banning increased PEREZ's pay twice, providing evidence of approval of PEREZ's conduct. When MEYER reduced its workforce for the stated reason of cost savings, Plaintiff was the only employee terminated; further, Banning approved the cost savings proposal as it was presented by PEREZ. This evidence further suggests ratification of PEREZ's actions against Plaintiff.

MEYER's argument in opposition speaks to a lack of evidence that MEYER failed to perform any promised investigation of PEREZ and does not address the identified evidence substantially likely to support a finding of ratification.

The court finds that the evidence presented suffices, for purposes of the instant motion, to demonstrate that Plaintiff has a substantial probability of obtaining punitive damages against MEYER at trial based on ratification of PEREZ's harassing conduct.

Conclusion. Plaintiff's motion is granted.

THE PARTIES ARE TO APPEAR to address deadlines for the above financial discovery.

CAPITAL ONE N.A. vs. ARCHIE A. PETERS
Case No. CL25-03911

Motion by Plaintiff to Vacate Dismissal and Enter Judgment Under Terms of the Stipulated Settlement Against Defendant

TENTATIVE RULING

Plaintiff's motion to vacate dismissal and enter judgment is denied without prejudice.

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)].

Defendant filed no responsive pleading in this action.

The only proof of service filed here for the motion papers shows service by mail, on Defendant, at an address at which personal service of summons and complaint had

been completed approximately six months earlier. No evidence was provided to explain how this could constitute proper service on a defendant who has never appeared in this action.

Plaintiff is also reminded that costs must be claimed post-judgment, per CRC 3.1700.

TROY ANDERSON vs. WARDEN OF CALIFORNIA MEDICAL FACILITY; ET AL.
Case No. CU23-02408

CUEVA's Demurrer

TENTATIVE RULING

Defendant D. CUEVA ("CUEVA," erroneously sued as WARDEN OF CALIFORNIA MEDICAL FACILITY) demurs to Plaintiff TROY ANDERSON's complaint for negligence and intentional tort.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis. Plaintiff's complaint does not state a cause of action against CUEVA. The complaint states that Plaintiff brought some of his concerns to CUEVA on April 22, 2022 and CUEVA agreed with Plaintiff that Plaintiff having to wear a control jumpsuit during emergency medical transports was unreasonable; CUEVA then directed his subordinates to enforce his orders. The complaint also states that CUEVA would approve Plaintiff's phone calls to a legal help center but another defendant, B. EBERT, would interfere and delay or deny the calls. There is no cognizable action stated against CUEVA in these allegations.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.)